

HOUSE No. 2562

The Commonwealth of Massachusetts

PRESENTED BY:

Tommy Vitolo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to create a nicotine free generation.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>1/16/2025</i>

HOUSE No. 2562

By Representative Vitolo of Brookline, a petition (accompanied by bill, House, No. 2562) of Tommy Vitolo relative to the prohibition of the sale of certain tobacco products to persons born on or after January 1, 2006. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to create a nicotine free generation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 239 of chapter 111 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in line 6, the words “and (iv)” and inserting
3 in place there of the words:- (iv) the prohibition of the sale of tobacco products to persons born
4 on or after January 1, 2006; and (v).

5 SECTION 2. Subsection (a) of section 6 of chapter 270 of the General Laws, as so
6 appearing, is hereby amended by striking out the definition “Tobacco product” and inserting in
7 place thereof the following definition:-

8 “Tobacco product”, a product containing or made or derived from tobacco or nicotine
9 that is intended for human consumption, whether smoked, chewed, absorbed, dissolved, inhaled,
10 snorted, sniffed or ingested by any other means including, but not limited to, cigarettes, cigars,
11 little cigars, chewing tobacco, pipe tobacco, snuff, electronic cigarettes, electronic cigars,
12 electronic pipes, electronic nicotine delivery systems or any other similar products that rely on

vaporization or aerosolization regardless of nicotine content in the product; provided, however, that “tobacco product” shall also include any component, part or accessory of a tobacco product; and provided further, that “tobacco product” shall not include a product that has been approved by the United States Food and Drug Administration for the sale of or use as a tobacco cessation product or for other medical purposes and is marketed and sold or prescribed exclusively for the approved purpose.

SECTION 3. Subsection (b) of said section 6 of said chapter 270, as so appearing, is hereby amended by inserting, in line 27, after the word “age” the following words:- or born on or after January 1, 2006.

SECTION 4. Said section 6 of said chapter 270, as so appearing, is hereby further amended by adding the following subsection:-

(f) Nothing in this section shall preempt further restriction by the commonwealth or any department, agency or political subdivision of the commonwealth.

SECTION 5. This act shall take effect on January 1, 2027.